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| | | • $355,425.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the $394,916.67 requested;<br>• $18,000.00 to plaintiff's counsel for plaintiff's litigation costs, as requested;<br>• $5,000.00 to Plaintiff Carlos Anaya as enhancement award, reduced from the $10,000.00 requested;<br>• $14,550.00 to ILYM Group, Inc., the settlement administrator, as requested; and<br>• $56,250.00 to the LWDA for its share of PAGA penalties, as requested.<br><br>The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is $735,525.00.<br><br>The Final Accounting hearing is set for June 7, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator must submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues.<br><br>Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling.<br><br>Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant. |
| 9 | 30-2024-01383304 Margaritis vs. AAA Oil, Inc. | The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a $530,000 class action and PAGA settlement. Subject to the submission of the document described below, the tentative ruling is to **GRANT** the motion as follows:<br><br>$5,000.00 for plaintiff's enhancement payment;<br><br>$159,000 for attorneys' fees;<br><br>$22,292.73 for litigation costs; |

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| | | $7,250.00 for settlement administration costs; and<br><br>$50,000 total PAGA penalties ($37,500 to LWDA).<br><br>Plaintiff is ordered to submit by June 17, 2026 invoices supporting the expert ($7,065) and mediation ($11,000) costs for which reimbursement is sought. Additionally, counsel should provide documentation supporting any recent costs incurred, such as filing fees, as the court does not reimburse "anticipated" costs.<br><br>Plaintiff is ordered to submit by June 17, 2026 a proposed order and judgment (and redline showing all changes) consistent with the above and with the following revisions:<br><br>1. Include the ROA number of the settlement and amendment. ROA 80 at 1.<br><br>2. The respective class and PAGA releases should be included. *Id.* ¶¶ 4, 10.<br><br>3. Papers are due 16 court days prior to the final accounting hearing. *Id.* ¶ 17.<br><br>4. A paragraph should be added providing that the court will retain jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6.<br><br>5. The following final paragraph should be added: "The court orders the parties and the settlement administrator to carry out their duties and obligations in accordance with terms of the settlement agreement."<br><br>The final accounting hearing is scheduled for June 21, 2027 at 1:30 p.m. in Department CX103. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. If all funds are not fully and finally disbursed by the filing deadline, counsel must request a continuance. |

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| | | Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. |
| 10 | 30-2022-01242308<br>Velasco vs. Warmel Management Company | The hearing on plaintiffs' motion for approval is **CONTINUED** to October 12, 2026 at 1:30 p.m. in Department CX103 to permit the parties to address and respond to the below issues. A supplemental brief must be filed at least 16 court days before the hearing and must address as necessary each of the below points. If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents. The parties must provide redlined copies of any revised documents, including all provisions of the settlement modified by amendment.<br><br>The court has reviewed and considered the papers, including the supplemental papers filed in support of plaintiffs' motion for approval of a $1,880,000 PAGA settlement. The court has the following questions and comments:<br><br><u>As to the settlement</u>:<br><br>1. The parties should insert the end date for the operative PAGA Period. ¶ 1.22; ROA 127 ¶ 17.<br><br>2. Plaintiffs should state their anticipated total compensation (including for any individual claims).<br><br>3. Plaintiffs should submit copies of any individual settlement agreements entered with defendant or any related entities and/or individuals. Notably, plaintiff Pereira states she entered a "separate settlement," which, unlike plaintiff Velasco's $35,000 individual settlement, is not disclosed by counsel. *Id.* ¶ 8.<br><br>4. The "Released Parties" provision is overbroad. ¶ 1.31. It includes unrelated, ambiguous and/or unidentified third parties that should be identified or removed including "direct and/or indirect," "agents, representatives, attorneys, insurers, partners, investors, shareholders, administrators," "subsidiaries, affiliates, divisions, predecessors, successors, assigns, managing agents, related companies and joint venturers." |